

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 09/16/2026

Court Room Rules and Notices:

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#	Case Name	Tentative
1	Aaron – Trust (2025-01483366)	Motion for Joinder Scot Williams’ Motion for Joinder (ROA 444) is DENIED. Moving party Scot Williams seeks to join the trustee of the Barbara J. Aaron Insurance Trust (Trust) as a “necessary party” to this proceeding. Scot identifies himself and his brother, Bret, in their capacities as co-trustees as the “necessary parties” that must be joined. Scot and Bret were named as respondents in the original petition as both individuals and co-trustees of the Trust. They have appeared in in this proceeding in their capacity as co-trustees/trustees. (ROAs 16 & 61). Because Scot and Bret have already appeared in their capacity as trustees, the motion for joinder is entirely redundant. Further, Scot was removed as co-trustee by the court on June 5, 2025.

		(ROA 18). Accordingly, he can no longer appear in that capacity. The motion is DENIED. Ryan Williams is directed to give notice.
2	<i>Machorro – Trust (2024-01389717)</i>	Motion to Compel Respondent Lorelei Ann Griggs’ Motion to Compel Initial Responses to Requests for Admission, Form Interrogatories, and Special Interrogatories (ROA 501) is DENIED. On March 24, 2026, Griggs served requests for admission, form interrogatories, and special interrogatories on Interim Trustee Betty Dekovner. Dekovner did not timely respond or ask for additional time in which to respond. This motion followed. After the motion was filed, Respondent served written responses that included general objections. Other than the general objections, the written responses appear sufficient. The court STRIKES the general objections asserted in the untimely responses as all objections were waived by the failure to timely respond. The accompanying request for sanctions is also DENIED. As an initial matter, the request for sanctions is not “accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code of Civ. Proc., §

		2023.040.) Further, a self-represented party may not recover monetary sanctions on discovery motions “other than amounts actually expended” and the motion does not request amounts expended. (<i>Damak v. Superior Court</i> (2026) 121 Cal.App.5th 792, 804.) Griggs is directed to give notice.
3	<i>Felix de Flores – Trust</i> (2025-01514581)	Motions to Quash (3) Specially Appearing Respondent Elia Guadalupe Solis’s Motion to Quash Service of Verified Petition for Lack of Personal Jurisdiction (ROA 63) is GRANTED. Specially Appearing Respondent Alma Georgina de Garcia’s Motion to Quash Service of Petition for Lack of Personal Jurisdiction (ROA 67) is GRANTED. Specially Appearing Respondent Norma Fabiola Reyes’s Motion to Quash Service of Petition for Lack of Personal Jurisdiction (ROA 76) is GRANTED. Pursuant to CCP §§ 418.10 and 581(h), specially appearing respondents Elia Guadalupe Solis, Alma Georgina de Garcia, and Norma Fabiola Reyes (Respondents) move to quash service of the petition on the ground they were not personally served with the petition.

	“Probate proceedings are proceedings in rem. A superior court has jurisdiction to determine the interests of all parties connected with the property of a decedent based on the property's location within the state.” (<i>Capra v. Capra</i> (2021) 58 Cal.App.5th 1072, 1082-1083; see also <i>Estate of Kampen</i> (2011) 201 Cal.App.4th 971, 1003 [“The jurisdiction of the probate court is in rem and the res is the decedent’s estate.”].) Because it is an in rem proceeding, a probate matter finally resolves all conflicting rights and binds the “whole world”. As the California Supreme Court explained in <i>In re Radovich’s Estate</i> (1957) 48 Cal.2d 116, 121: “the jurisdiction of the probate court is a jurisdiction in rem; [] an heirship proceeding is not an ordinary civil action, but a specialized proceeding in rem. The res is the right of heirship and distribution and as to that issue the decree is binding on the whole world.” (See also <i>Bodine v. Superior Court</i> (1962) 209 Cal.App.2d 354, 359-360 [“Such a proceeding is not an ordinary civil action, but a specialized proceeding in rem.” (Id at p. 383.) “So it has been said that such heirship decree [is] conclusive against all persons as the basis for the decree of distribution which [is] to follow; it settles the rights of all persons claiming as heirs of the decedent, whether or not they are named in the complaint or personally served with summons and whether or not they were individually named in [the] notice. .
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	. . The decree is not one in personam in favor of one of the parties against another.” Citations and internal quotation marks omitted.].) Under the foregoing authorities, mail service of the petition on Respondents was sufficient to support this court’s exercise of jurisdiction over claims asserted in the petition (ROA 2) seeking to contest a trust, remove a trustee, impose a surcharge in connection with the trustee’s breach of fiduciary duties, compel an accounting, determine the rights of heirs and beneficiaries, and the invalidity of a no-contest clause. Mail service is not, however, sufficient to support this court’s exercise of jurisdiction over the remaining claims asserted in the petition, i.e. financial elder abuse, Probate Code section 850, and fraud. Nor is mail service sufficient to support an award of damages, double damages, and punitive damages against the individual respondents. (Prob. Code, § 581; Code of Civ. Proc., § 413.10 et seq.) Because those claims are alleged in this petition, mail service of the petition is not sufficient. The motions are GRANTED. Respondent Elia Guadalupe Solis is ordered to give notice.
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4	<i>Lutton – Probate (2019-01048544)</i>	Motion to Be Relieved VZ Law, LLP’s motion to be relieved as counsel for Jeffrey S. Moorad (ROA 454) is GRANTED. The court will sign the Proposed Order. Moving counsel is ORDERED to give notice to all parties to this action and file proof of service of the court’s order as entered. Withdrawal will be effective upon filing of proof of service of the order.
5	<i>Donaldson – Probate (2023-01323260)</i>	Motion for Leave to Amend; Motions to Compel (2) Petitioner Darla Merritt’s unopposed Motion for an Order Compelling Eric Donaldson’s Responses to Inspection Demand, Set Four (ROA 258) is GRANTED. Eric Donaldson is ORDERED to provide verified written responses, without objection, to the inspection demand and to produce all documents responsive to each of the requests within 30 days of this order. Petitioner’s accompanying request for sanctions in connection with the motion is GRANTED in the amount of \$1,547.50 (2.5 hours at \$595 per hour plus the \$60 motion fee). Petitioner Darla Merritt’s unopposed Motion for Leave to File a Second Amended Will Contest and Objection to

	Petition for Probate (ROA 291) is GRANTED. “The policy favoring amendments is so strong that it is a rare case in which denial of leave to amend can be justified.” (<i>City of Torrance v. Southern California Edison Company</i> (2021) 61 Cal.App.5th 1071, 1091; see <i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion”]. Petitioner is ORDERED to file and serve the proposed Second Amended Will Contest, attached to the motion as Exhibit 1, within 15 days of this order. Petitioner Darla Merritt’s unopposed Motion for an Order Compelling Eric Donaldson to Appear for Deposition and Produce Documents, etc. (ROA 287) is GRANTED. Eric Donaldson is ORDERED to appear for deposition and produce all responsive documents on a date and time convenient to the parties and their counsel, but in no event later than October 7, 2026. Petitioner’s accompanying request for sanctions in connection with the motion is GRANTED in the amount of \$5,470 (6 hours for motion and travel time at \$595 per hour,
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		a \$60 motion fee, and \$1,840 in associated costs). Petitioner is directed to give notice.
6	Coxe – Trust (2024-01371243)	Motion for Fees The Motion of Former Counsel for Approval and Payment of Attorney’s Fees and Costs from Trust Assets (ROA 191) is DENIED. Moving party The Fox Firm asks the court to approve and direct payment of attorney fees and costs from the Frank Sidney Coxe Trust (Trust) for work allegedly incurred in connection with administration of the Trust including representation of Sophie Vilks-Coxe, former trustee of the Trust, in this proceeding. The motion is made pursuant to Probate Code sections 15684, 16240, 16247, 17200, and 17206. However, none of those sections give this court the power to award interim fees directly to the moving party. At most, the sections give the court power to award attorney fees if requested by a trustee. Section 15684 states: “a trustee is entitled to repayment out of the trust property for . . . [e]xpenditures that were properly incurred in the administration of the trust.” (Emphasis added.)

Section 16240 states: “the **trustee** has the power to insure the property of the trust against damage or loss and to insure the trustee against liability with respect to third persons.” (Emphasis added.)

Section 16247 gives the **trustee** power to hire attorneys.

Section 17200 gives a **trustee or a beneficiary** the power to petition a court concerning the internal affairs of a trust.

Section 17206 gives a court the discretion to “make any orders and take any other action necessary or proper to dispose of the matters presented by the **petition.**” (Emphasis added.) No petition in this proceeding seeks fees for moving party.

None of the cited authorities give this court jurisdiction to award moving party fees pursuant to the motion.

Even if the court had jurisdiction to consider this motion, it would be denied. “[A] probate court has the discretion to award interim fees in some circumstances.” (*People ex rel. Harris v. Shine* (2017) 16 Cal.App.5th 524, 539.) ““The underlying principle which guides the court in allowing costs and attorneys’ fees incidental to litigation out of the trust estate is that such litigation is a

	benefit and a service to the trust,” and not for the personal benefit of the trustee. [Citation.] Consequently, where the trust is not benefited by litigation, or did not stand to be benefited if the trustee had succeeded, there is no basis for the recovery of expenses out of the trust assets.”” (Zahnleuter, supra, 88 Cal.App.5th at Id, at p. 534.) “[T]he costs of a <i>successful</i> defense to a removal or surcharge petition are generally chargeable against the trust . . . However, a trustee is not entitled to indemnity for fees incurred in an <i>unsuccessful</i> defense of such a petition absent an additional showing that ‘the trustee subjectively believed that the expense was necessary or appropriate to carry out the purpose of the trust and that belief was objectively reasonable.’” (People ex rel. Harris v. Shine, supra, 16 Cal.App.5th at p. 535.) “A trustee is <i>not</i> entitled to reimbursement of litigation expenses from the trust estate when, as here, ‘[t]he dispute was, and continues to be, over who will enjoy the benefits and who will control the trust.’” (Zahnleuter v. Mueller, supra, 88 Cal.App.5th at p. 1307.) This proceeding is still active and there has been no determination of whether the fees incurred by the former trustee are a benefit or a service to the Trust and no evidence provided to support a claim of the same.
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		At most, moving party is a creditor of the trust and has only the rights of a creditor. (See, e.g., Prob. Code, § 18004.) The motion is DENIED. In denying the motion, the court makes no finding as to whether moving party would be entitled to fees through some other means or at some other time. Petitioner Daniel F. Coxe is ordered to give notice.
7	Sansky – Trust (2025-01487738)	NOTICE OF WITHDRAWAL FILED
8	Richley – Trust (2025-01493436)	MOTIONS TO COMPEL (2) The hearings on Petitioner Jeanine Richley’s Motion to Compel Respondent Mia Alexis’ Further Responses and Production as to Requests for Production of Documents, Set One (ROA 50) and Motion to Compel Respondent Mia Alexis’ Further Responses to Special Interrogatories, Set One (ROA 55) are continued to November 18, 2026 at 9:00 a.m. in Department CM08 to allow the moving party to satisfy the requirements of Code of Civil Procedure section 2016.040 (§ 2016.040). Pursuant to § 2016.040, “[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either <i>in person</i>, <i>by telephone</i>, or <i>by videoconference</i>, to informally resolve <i>each issue</i> presented

		by the motion.” (Emphasis added.) The declarations (ROAs 46 & 51) submitted in support of the motions do not state the required facts. The parties are ORDERED to meet and confer in person, telephonically, or by video conference and attempt to informally resolve each issue presented by the motions. The parties are ORDERED to file a joint statement listing the interrogatories and requests for production that remain at issue following the required meeting. The joint statement must be filed at least ten court days before the continued hearing date. Moving party is directed to give notice.
9	<i>Hakeman – Trust (2025-01465869)</i>	Motion to File Under Seal The motion before the court is Respondent and Objector Jill Hakeman and Objector Marilyn D. Hakeman’s Amended Motion to File Under Seal Amendment to and Complete Restatement of the Marilyn D. Hakeman Living Trust, Dated November 5, 2013 (ROA 47). A supporting declaration (ROA 41) and notice of lodging (ROA 39) were concurrently filed. The notice of lodging states that an unredacted copy of the document that is the subject of the motion is “lodge[d] conditionally under seal.” No unredacted copy appears in the court’s electronic files, however. A review of the court’s files shows that a document

		with the same title was filed by Petitioners as part of a supplement filed on July 8, 2026 (ROA 30). The moving parties should be prepared to address whether the amendment attached as an exhibit to ROA 30 is the document they seek to seal.
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